



CHAPTER lxxx.

An Act for amalgamating the undertakings of the Ticehurst and Robertsbridge Water Company and the Wadhurst Ticehurst and District Gas Light and Coke Company for extending their limits of supply for authorising the construction of works and the raising of additional capital and for other purposes. A.D. 1904.
[22nd July 1904.]

WHEREAS by the Ticehurst Water Act 1902 the Ticehurst and Robertsbridge Water Company (in this Act called "the water company") were incorporated with a capital of eighteen thousand pounds in three thousand six hundred shares of five pounds each and were authorised to construct waterworks and supply water within the parishes of Ticehurst Burwash Etchingham and Salehurst in the county of Sussex and to borrow on mortgage of their undertaking sums not exceeding in the whole six thousand pounds:

And whereas the water company have issued capital to the amount of seven thousand pounds and have borrowed by debentures charged upon their undertaking sums amounting to two thousand pounds:

And whereas by the Wadhurst Gas Act 1902 the Wadhurst Ticehurst and District Gas Light and Coke Company (in this Act called "the gas company") were incorporated with a capital of twenty-five thousand pounds in five thousand shares of five pounds each and were authorised to purchase the undertaking of the Ticehurst Gas Light and Coke Company Limited and were authorised to construct gasworks and supply gas within the parishes or places of Wadhurst Ticehurst Burwash Salehurst Hurst Green and Etchingham in the county of Sussex (provided

A.D. 1904. that the gas company should not exercise the powers of their said Act in the parish of Salehurst without having obtained the written consent of the rural district council of Ticehurst) and were further authorised to borrow on mortgage of their undertaking sums not exceeding in the whole eight thousand pounds:

And whereas the gas company have purchased the undertaking of the limited company herein-before referred to and have also purchased the gas undertaking carried on by Henry Tarleton Whitty at Wadhurst:

And whereas the gas company have issued capital to the amount of fifteen thousand pounds and have borrowed by debentures charged upon their undertaking sums amounting to five thousand pounds:

And whereas the undertakings of the water company and the gas company could conveniently and with advantage to the public interests be carried on as one undertaking and their combination would effect economy in management and facilitate the raising of capital and it is expedient that the said companies should be amalgamated into one company (in this Act referred to as "the Company"):

And whereas there is no adequate or proper supply of water or gas to the parish of Heathfield in the county of Sussex and it is expedient that the limits for the supply of water and gas by the said companies when so amalgamated should be extended so as to include the said parish of Heathfield:

And whereas the water company have found that it would be impracticable to secure an adequate supply of water by means of the land and waterworks authorised by the Ticehurst Water Act 1902 to be acquired and constructed but they have acquired other lands upon which they are constructing a well and pumping station and reservoir and it is expedient that the acquisition of such lands and the construction of waterworks thereon should be sanctioned by Parliament:

And whereas it is expedient that the Company should be authorised to acquire land and construct further gasworks and to raise additional capital for the general purposes of their undertaking:

And whereas it is expedient that the agreement made the fifteenth day of March one thousand nine hundred and two between William Langham Christie of the one part and George

[4 EDW. 7.] *Ticehurst and District Water and Gas* [Ch. lxxx.]
Act, 1904.

Francis Gregory William Bentham Martin and John Luke Venables as confirmed by and scheduled to the Ticehurst Water Act 1902 should be modified: A.D. 1904.

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

And whereas plans showing the lands required or which may be taken for the purposes or under the powers of this Act and plans and sections showing the lines situations and levels of the waterworks authorised by this Act and also a book of reference containing the names of the owners or reputed owners and lessees or reputed lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Sussex and are herein-after referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Ticehurst and District Water and Gas Act 1904. Short title.

2. The following Acts and parts of Acts namely:—

Incorporation of Acts.

The Lands Clauses Acts;

The Waterworks Clauses Acts 1847 and 1863 (except the words in section 44 of the former Act “with the consent in writing of the owner or reputed owner of any such house or of the agent of such owner”);

The Gasworks Clauses Acts 1847 and 1871 Provided that section 13 of the former Act shall be read as if the words “or any premises” were inserted after the words “private building”;

The Companies Clauses Consolidation Act 1845 except the provisions relating to the conversion of borrowed money into capital;

Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) Part III (relating to debenture stock) and Part IV (relating to change of name) of the Companies Clauses Act 1863 as amended by subsequent Acts;

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A.D. 1904. — so far as the same are applicable for the purposes and not inconsistent with the provisions of this Act are incorporated with and form part of this Act.

Interpreta-
tion.

3. In this Act unless there be something in the subject or context repugnant to such construction words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act have the same respective meanings And in this Act—

The expression “the water company” means the Ticehurst and Robertsbridge Water Company;

The expression “the gas company” means the Wadhurst Ticehurst and District Gas Light and Coke Company;

The expression “the Company” means the water company and the gas company when amalgamated as in this Act provided;

The expression “the amalgamation” means the amalgamation of the water company and the gas company under the provisions of this Act.

Amalgama-
tion of
water com-
pany and
gas com-
pany.

4.—(1) At the close of the thirty-first day of December one thousand nine hundred and four the water company and the gas company shall become and be amalgamated into a single company and from and after that date they shall cease to exist as separate companies and the persons then constituting the water company and the gas company together with all persons who shall thereafter subscribe to or become proprietors in the undertaking of the Company and their executors administrators successors and assigns respectively shall be united into a company for the purposes of this Act and for those purposes shall be incorporated by the name of “The Ticehurst and District Water and Gas Company” and by that name shall be a body corporate with perpetual succession and a common seal and with power to purchase take hold and dispose of lands and other property for the purposes of this Act.

(2) After the amalgamation the undertakings of the water company and the gas company respectively shall together constitute the undertaking of the Company and all works real and personal property powers authorities privileges exemptions rights of action and suit and all other the rights and interests of the water company and the gas company shall by virtue of this Act be vested in the Company and may and shall be

held used exercised and enjoyed by the Company in the same manner and to the same extent as the same respectively at the date of the amalgamation are or if this Act were not passed might be held used exercised and enjoyed by the water company and the gas company respectively. A.D. 1904.

5. All debts liabilities and obligations due from or binding upon the water company or the gas company at the date of the amalgamation shall be paid discharged and performed by the Company and shall be recoverable and enforceable by the same means and subject to the same conditions as they would or might have been if this Act had not been passed. Discharge of liabilities and obligations.

6. The debts and liabilities of the water company and the gas company which shall at the date of the amalgamation be secured by mortgage bond debentures or debenture stock charged upon the undertaking of the water company or the gas company as the case may be shall after the amalgamation be a charge upon the undertaking of the Company and shall be as valid and effectual in relation to the Company as if such mortgages bonds debentures or debenture stock had been granted by the Company. Mortgages to be a charge on amalgamated undertaking.

7. All powers of borrowing money conferred upon the water company and the gas company respectively by the Ticehurst Water Act 1902 and the Wadhurst Gas Act 1902 and subsisting at the time of the amalgamation may after the amalgamation be exercised by the Company in the same manner and to the same extent as they might have been exercised by the water company and the gas company respectively if this Act had not been passed Provided that in any case in which any such moneys would under the provisions of the Ticehurst Water Act 1902 or the Wadhurst Gas Act 1902 have been secured by the water company or the gas company upon the undertaking of either of those companies such moneys shall be secured by the Company upon the undertaking of the Company. Company may exercise borrowing powers of water company and gas company.

8. From and after the amalgamation the capital of the water company and the capital of the gas company shall be amalgamated and shall together constitute and be called the original capital of the Company and each share in the water company and each share in the gas company shall after the amalgamation be deemed to be a share in the Company and shall carry the same rights with respect to the undertaking of Amalgamation of capital.

A.D. 1904. — the Company as it previously carried with respect to the undertaking of the water company or the gas company as the case may be and every such share which shall at the date of the amalgamation be unissued may after the amalgamation be issued by the directors of the Company under and pursuant to the provisions of this Act.

Shareholders
in water
company and
gas company
to hold
shares in
Company on
same trusts.

9. The several proprietors of shares in the water company and the gas company who shall upon the amalgamation become by virtue of this Act proprietors of shares in the Company shall hold the last-mentioned shares upon the same trusts and subject to the same powers provisions charges and liabilities as those upon or to which their respective shares in the water company and the gas company were immediately before the amalgamation held or subject and so as to give effect to and not to revoke any deed will or other instrument disposing of or affecting any such shares and every such deed will or other instrument shall in the absence of proof to the contrary be held to apply to such shares in the Company.

Issue of new
certificates
for shares.

10. The Company shall whenever thereunto requested by the proprietor of any share or shares in the water company or the gas company issue to such proprietor a certificate or certificates of his shares in the Company in lieu of and in exchange for the certificate or certificates for the same shares held by him in the water company or the gas company as the case may be and the Company if and when they think fit may require the several proprietors of shares in the water company and the gas company to exchange the certificates for the shares in those companies held by them respectively at the time of the amalgamation for certificates to be issued under this Act for the same shares in the Company.

Provision as
to lost cer-
tificates.

11. If the certificate or certificates for any share or shares in the water company or the gas company be lost or destroyed then upon proof of such loss or destruction to the satisfaction of the directors of the Company and upon receipt of such indemnity (if any) as the said directors may think necessary the Company shall issue to the person entitled to such certificate or certificates the certificate or certificates to which he would have been entitled for his share or shares in the Company if such first-mentioned certificate or certificates had not been lost or destroyed.

12. The balances standing on the respective revenue accounts of the water company and the gas company at the date of the amalgamation shall be amalgamated and shall together constitute a balance on the revenue account of the Company at the said date.

A.D. 1904.
 Amalgama-
 tion of
 revenue
 accounts.

13. After the amalgamation the Ticehurst Water Act 1902 and the Wadhurst Gas Act 1902 shall except so far as they are by this Act expressed to be varied or repealed or are inconsistent with the tenor of this Act, remain in full force and all rights and powers thereby or by this Act conferred on and vested in the water company and the gas company in relation to their respective undertakings may be enjoyed and exercised by the Company in relation to such undertakings. And all matters to be done continued or completed or which but for the amalgamation would might or could be done continued or completed by the water company and the gas company respectively or their respective directors officers or servants under or by virtue of those Acts or this Act shall or may be done continued or completed by the Company and their directors officers and servants as the case may be and this Act and each of those Acts shall after the amalgamation be read and construed as if the name of the Company had been used therein in relation to the undertaking of the water company or the gas company as the case may be instead of the name of that company.

Acts relating
 to water
 company and
 gas company
 to apply to
 Company.

14. Section 37 of the Ticehurst Water Act 1902 is hereby repealed and section 40 of that Act shall be read as if the words "one shilling and sixpence" were inserted in lieu of the words "two shillings."

Amendment
 of Ticehurst
 Water Act
 1902.

15. Nothing in this Act shall cause the abatement discontinuance or determination of or in any wise prejudicially affect any action suit or other proceeding at law or in equity commenced by or against either the water company or the gas company either solely or jointly with any other company or with any person before the time of the amalgamation and then pending but the same may be continued prosecuted or enforced by or against the Company either solely or as the case may require jointly with such other company or with such person and all persons committing offences against any of the provisions of the Ticehurst Water Act 1902 or the Wadhurst Gas Act 1902 may be prosecuted and all penalties incurred by reason of such offences may be sued for and recovered in like manner in all

Actions &c.
 not to abate.

A.D. 1904. respects as if this Act had not been passed the Company being in respect of all such matters considered as identical with the water company or the gas company as the case may be.

Causes and rights of action reserved.

16. All causes and rights of action or suit accrued before the amalgamation and then in any manner enforceable by for or against either the water company or the gas company shall be and remain as good valid and effectual for or against the Company as they would or might have been for or against the water company or the gas company (whichever was previously affected thereby) if this Act had not been passed.

Saving submissions and awards.

17. No submission to arbitration of any matter in dispute between either the water company or the gas company and any other company or any person under which any reference is pending and incomplete at the time of the amalgamation and no award theretofore made and then remaining in force shall be revoked or prejudicially affected by anything in this Act contained but every such submission and award shall be as valid and effectual for or against the Company as it would have been for or against the water company or the gas company as the case may be.

Saving conveyances and contracts.

18. All deeds conveyances grants assignments leases purchases sales mortgages bonds covenants agreements contracts and securities which have before the amalgamation been executed made or entered into by with to or in relation to either the water company or the gas company or the directors thereof and which are in force at the time of the amalgamation and all obligations and liabilities which shall before the amalgamation have been incurred by or to or which but for the amalgamation might or would have arisen in relation to either the water company or the gas company or the directors of either of the said companies shall be as valid and of as full force and effect in favour of against or in relation to the Company as if the same had been executed made or entered into by with or to or in relation to or had been incurred by or to or had arisen in relation to the Company by name.

Contracts for land entered into by water company or gas company to be executed.

19. Where either the water company or the gas company has before the date of the amalgamation entered into any contract for the purchase of or taken or used any lands which at the time of the amalgamation shall not have been effectually conveyed to that company or the purchase money in respect of which shall not have been duly paid by that company then and in every such

case the contract if in force at the time of the amalgamation shall thereafter be completed by and such lands shall be conveyed to the Company or as the Company directs and the purchase money shall be paid and applied pursuant to the provisions of the Act by which such lands were authorised to be purchased taken or used and that Act shall in relation to the completion of the contract and the purchase and conveyance of the lands and the payment and application of the purchase money in respect thereof be read and construed as if the Company were the company named in the Act and contract.

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20. Where any money has before the time of the amalgamation been paid by either the water company or the gas company or is thereafter paid by the Company under the Ticehurst Water Act 1902 or the Wadhurst Gas Act 1902 or this Act into the Bank of England or to any trustee or trustees on account of the purchase of any lands or any interest therein or for any compensation or satisfaction or on any other account such money or the stocks funds or securities in or upon which the same then is or thereafter may be invested by order of any court or otherwise and the interest dividends and annual produce thereof shall be applied and disposed of pursuant to such Acts and those Acts and every other Act shall after the amalgamation in relation to such money stocks funds or securities or the interest dividends or annual produce thereof be read and construed as if the Company were the company therein named with reference to the same money stocks funds securities interest dividends or annual produce.

Application of money paid into bank or to trustees.

21. All officers and persons who at the time of the amalgamation have in their possession or under their control any books documents papers or effects belonging to either the water company or the gas company or to which either of those companies would but for the amalgamation have been entitled shall be liable to account for and deliver up the same to the Company or to such persons as the Company may appoint to receive the same in the same manner and subject to the same consequences on refusal or neglect as if such officers and persons had been appointed by and become possessed of such books documents papers or effects for the Company.

Officers of water company and gas company to be accountable.

22. All clerks officers and servants who at the time of the amalgamation are in the employment of either the water

Officers of water company and

A.D. 1904. company or the gas company shall thereupon become clerks
gas company officers or servants as the case may be of the Company with
to be officers the same rights and subject to the same obligations and incidents
of Company. in respect of such employment as they would have had or been
subject to as the clerks officers or servants of the water company
or the gas company as the case may be and shall so continue
unless and until they respectively are duly removed from such
employment by the Company or until the terms of their employ-
ment are duly altered by the Company.

Books and documents to continue evidence. **23.** All books and documents which would have been evidence in respect of any matter for or against the water company or the gas company shall after the amalgamation be admitted as evidence in respect of the same or the like matter for or against the Company.

Resolutions of water company and gas company to remain in force. **24.** All resolutions of any general meeting or board of directors of either the water company or the gas company or of any duly constituted and authorised committee thereof so far as the same are applicable and remain in force at the date of the amalgamation shall notwithstanding the amalgamation continue to be operative and shall apply to the Company and to the directors officers and servants of the Company until duly revoked or altered by the Company or under their authority.

Payment of calls. **25.** All calls made by either the water company or the gas company and not paid at the time of the amalgamation shall be payable to and may be enforced by the Company as if such calls had been made by the Company.

Register books and certificates relating to water company and gas company to subsist until replaced. **26.** All registers of shares stock mortgages and bonds of the water company and the gas company and all registers of transfers thereof respectively and all shareholders and stockholders address books and all certificates of shares or stock of and in the water company or the gas company which are valid and subsisting at the time of the amalgamation shall continue to be valid and subsisting and shall have the same operation and effect as before the amalgamation unless and until new or altered registers books and certificates respectively are substituted in their stead and all transfers sales or dispositions of stock or shares made before the amalgamation and not then completed shall have the same operation and effect as if made after the amalgamation.

27. All the byelaws rules and regulations of the water company and the gas company relating to the management use or control of their undertakings respectively shall notwithstanding the amalgamation continue to be in force and applicable to and in respect of such undertakings and shall and may be enforced by and available to the Company in their own name as well for the recovery of penalties as for all other purposes as if the same respectively had been originally made by the Company until the same are duly rescinded by the Company or other byelaws rules and regulations are duly made by the Company in their stead.

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Byelaws &c.
to remain in
force.

28. Notwithstanding the amalgamation everything previously done suffered and confirmed respectively under or by virtue of the Ticehurst Water Act 1902 or the Wadhurst Gas Act 1902 shall unless invalidated by the express enactments of this Act be as valid as if this Act had not been passed and the amalgamation and this Act respectively shall accordingly be subject and without prejudice to everything so done suffered and confirmed respectively and to all rights liabilities claims and demands present or future which if the amalgamation had not taken place and this Act had not been passed would be incident to and consequent on any and every thing so done suffered and confirmed respectively and with respect to all things so done suffered and confirmed respectively and to all such rights liabilities claims and demands the Company shall to all intents represent the water company and the gas company.

General
saving of
rights and
claims.

29. All the proper expenses of and incidental to the amalgamation shall be paid by the Company.

Expenses of
amalgama-
tion.

30. The first ordinary meeting of the Company shall be held within three months after the date of the amalgamation.

First
ordinary
meeting.

31. The number of directors of the Company shall be five but the Company may vary the number provided that the number be not at any time more than seven or less than three.

Number of
directors.

32. The qualification of a director of the Company shall be the possession in his own right of not less than forty shares.

Qualification
of directors.

33. The quorum of a meeting of directors of the Company shall be three.

Quorum.

A.D. 1904.

First and
subsequent
directors.

34. The directors of the water company and of the gas company respectively in office at the date of the amalgamation shall be the first directors of the Company and shall continue in office until the first ordinary meeting of the Company to be held after the amalgamation and at such meeting the shareholders present personally or by proxy may either continue in office the directors appointed by this Act or any of them or may reduce the number of such directors or may elect a new body of directors or directors to supply the places of those not continued in office the directors appointed by this Act being if qualified eligible for re-election and at the first ordinary meeting to be held in every year thereafter the shareholders present personally or by proxy shall (subject to the power hereinbefore contained for varying the number of directors) elect persons to supply the places of the directors then retiring from office agreeably to the provisions of the Companies Clauses Consolidation Act 1845 and the several persons elected at any such meeting being neither removed nor disqualified nor having resigned shall continue to be directors until others are elected in their stead in manner provided by the Companies Clauses Consolidation Act 1845.

Auditors.

35. The auditors of the water company and of the gas company respectively in office at the time of the amalgamation shall be the auditors of the Company until the first ordinary meeting of the Company.

Extension of
limits of
supply.

36. The limits of the Ticehurst Water Act 1902 for the supply of water and the limits of the Wadhurst Gas Act 1902 for the supply of gas are hereby extended so as in each case to include the parish of Heathfield in the county of Sussex.

Power to
local autho-
rity to sup-
ply water
in case Com-
pany fails to
supply.

37. If at any time after the expiration of five years from the date of the amalgamation the Company are not furnishing or prepared on demand to furnish a sufficient supply of water in accordance with the provisions of this Act in the parish of Heathfield the local authority of the district within which such parish is situate may provide a supply in the parish of Heathfield in accordance with the provisions of the Public Health Act 1875 or any company body or person may apply for an Act of Parliament or Provisional Order for the purpose of supplying water in any part of such parish not sufficiently supplied by the Company as if in either case this Act had not been passed If

any difference shall arise between the Company and any such local authority company body or person as to the sufficiency of the supply of water in any part of such parish such difference shall be settled on the application of either party by the Board of Trade. A.D. 1904.

38. Subject to the provisions of this Act the water company may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and in over upon or under the lands delineated on the said plans and described in the deposited book of reference the waterworks shown on those plans and may enter upon take and use such of the lands delineated on the said plans and described in the said book of reference as may be required for that purpose and so far as the water company have already constructed or commenced the construction of any of the said works or acquired or proceeded to acquire any of the said lands such construction commencement acquisition and proceeding is hereby sanctioned and confirmed The principal waterworks herein-before referred to are the following:—

Power to
water com-
pany to
make water-
works.

Work No. 1.—A well and pumping station to be situate in the north-east corner of a field in the parish of Ticehurst numbered 1240 on the Ordnance map (scale $\frac{1}{2500}$) of that parish (published 1898):

Work No. 2.—A service reservoir to be situate in a field in the parish of Burwash numbered 1604 on the Ordnance map (scale $\frac{1}{2500}$) of that parish (published 1898):

Work No. 3.—A conduit or line of pipes in the parish of Ticehurst commencing at the well (Work No. 1) herein-before described and terminating at a point in the public road seventeen yards or thereabouts from the north-east corner of the field numbered 1240 before described:

Work No. 4.—A conduit or line of pipes in the parish of Burwash commencing at the reservoir (Work No. 2) and terminating at a point in the public road sixty-four yards or thereabouts from the south-west corner of the field numbered 1527 on the Ordnance map (scale $\frac{1}{2500}$) of that parish (published 1898).

39. The water company in addition to the foregoing works may upon any lands for the time being belonging to them make and maintain all such cuts channels catchwaters tunnels adits Power to
make sub-
sidiary
works.

A.D. 1904. pipes conduits culverts drains sluices byewashes shafts wells bores water towers overflows waste-water channels gauges filter beds tanks banks walls bridges embankments piers approaches engines machinery and appliances as may be necessary or convenient in connexion with or subsidiary to the before-mentioned works or any or either of them.

Limits of deviation.

40. In the construction of the waterworks authorised by this Act the water company may deviate laterally to any extent not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries of such road shall be deemed to be such limits and they may also deviate vertically from the levels shown on the deposited sections to any extent not exceeding three feet upwards and ten feet downwards provided that no part of the mains or pipes shown upon the deposited plans shall be raised above the ground level of any road in which they may be laid.

Power to take waters.

41. Subject to the provisions of this Act the water company may collect impound take use divert and appropriate for the purposes of their water undertaking all such springs streams and waters as will or may be intercepted by the works by this Act authorised.

Period for compulsory purchase of lands.

42. The powers of the water company for the compulsory purchase of lands for the purposes of this Act shall not be exercised after the expiration of three years from the passing of this Act.

Period for completion of works.

43. The waterworks by this Act authorised shall be completed within five years from the passing of this Act and on the expiration of that period the powers by this Act granted to the water company for making the said works or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed Provided always that subject to the restrictions and provisions of this Act the water company may alter renew enlarge and extend their engines machinery tanks wells shafts adits pipes and other works in such manner and to such extent as they may think requisite or advisable for supplying water within their limits of supply.

Persons under disability may grant easements &c.

44. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the water

company any easement right or privilege (not being an easement right or privilege of water in which parties other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

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45. The water company may make and carry into effect agreements with the owners lessees or occupiers of any lands within the drainage area of the works by this Act authorised with reference to the execution by the water company or such owners lessees or occupiers of such works as may be necessary for the purpose of more effectually collecting conveying and preserving the purity of the waters by this Act authorised to be diverted collected and appropriated by the water company flowing to upon under or from such lands directly or derivatively into such works.

Power to agree as to drainage of lands.

46. The water company may hold any lands acquired by them under the powers of this Act which they may deem necessary for the purpose of protecting their waterworks against pollution fouling and contamination and so long as such necessity shall continue such lands shall not be deemed to be superfluous lands within the meaning of this Act or the Lands Clauses Acts respectively but the water company shall not create or permit a nuisance on any such lands and shall not erect any buildings thereon other than offices and dwellings for persons in their employ and such buildings and works as may be incident to or connected with their water undertaking.

Power to hold lands for protection of waterworks.

47. The waterworks by this Act authorised shall for all purposes form and be part of the undertaking of the water company and the provisions of the Ticehurst Water Act 1902 shall subject to the provisions of this Act apply thereto.

New waterworks to form part of water company's undertaking.

48. Subject to the provisions of this Act the Company may enter upon take and use the lands described in the schedule to this Act and may thereon erect lay down provide and from time to time maintain alter improve enlarge extend and renew or discontinue gasworks retorts gasometers manufactories condensers scrubbers exhausters purifiers gasholders tanks receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks

Powers as to construction and maintenance of additional gasworks &c.

A.D. 1904. — machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar and all other products or residuum of any materials employed in or resulting from the manufacture of gas.

New gasworks to form part of gas company's undertaking.

49. The gasworks by this Act authorised shall for all purposes form and be part of the undertaking of the gas company and the provisions of the Wadhurst Gas Act 1902 shall subject to the provisions of this Act apply thereto.

Power to Company to raise additional capital.

50. The Company may from time to time raise additional capital not exceeding in the whole ten thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock or wholly or partially by one or more of those modes respectively but the Company shall not issue any share of less nominal value than five pounds nor shall any such share or stock vest in the person accepting the same unless and until the full price of such share or stock shall have been paid in respect thereof.

Power to borrow in respect of additional capital.

51. The Company may subject to the provisions of this Act borrow on mortgage of their undertaking any sum or sums not exceeding in the whole three thousand three hundred pounds in respect of the additional capital of ten thousand pounds authorised by this Act to be raised and at the time actually issued by shares or stock but no part thereof shall be borrowed until the whole of the shares or stock at the time issued have been accepted and one-half of such portion of capital is paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such shares and stock have been issued and accepted and that one half thereof has been paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which shall be sufficient evidence thereof.

Debenture stock.

52. The Company in lieu of raising money on mortgage under this Act may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of

all debenture stock and of all mortgages at any time created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank *pari passu* (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages. Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

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53. All moneys raised on mortgage by the Company under this Act and the interest due thereon and the interest due on debenture stock created and issued under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of debts incurred or engagements entered into by the Company after the passing of this Act but this priority shall not affect any claim against the Company in respect of any rentcharge to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease to be granted or made to the Company by any person in pursuance of any Act relating to the Company which is entitled to rank in priority to or *pari passu* with the interest or dividends on the mortgages or debenture stock nor shall it affect any mortgage or debenture stock of either the water company or the gas Company existing at the date of the amalgamation.

Priority of mortgages and debenture stock over other debts.

54. The mortgagees of the undertaking of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one thousand pounds in the whole.

For appointment of a receiver.

55. If any money is payable to a shareholder or mortgagee or debenture stock holder being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Company.

Receipt in case of persons not sui juris.

56. The water company and the gas company and the Company may apply to the purposes of this Act to which capital is properly applicable any moneys they are authorised to raise whether by shares mortgages or debenture stock and which they

Application of capital moneys.

A.D. 1904. do not require for the purposes for which such moneys were authorised to be raised and all moneys raised under this Act whether by shares mortgages or debenture stock shall be applied to the purposes of the undertaking of the Company being in all cases purposes to which capital is properly applicable.

Expenses of Act. **57.** All the costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

GAS LANDS AT BURWASH.

All that piece or parcel of land situate in the parish of Burwash in the county of Sussex containing by admeasurement two acres or thereabouts and being the southern portion of a field numbered 86 on the 25-inch Ordnance map of the said parish (second edition 1898).

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